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COMMUNITY BENEFITS AGREEMENT

THIS COMMUNITY BENEFITS AGREEMENT ("CBA" or "Agreement"), is voluntarily entered into as of December 9th, 2020, between Broad and Washington, LP, having a mailing address at 1719 Rittenhouse Square, Philadelphia, Pennsylvania 19103, ("Owner"), and the Hawthorne Empowerment Coalition, having a mailing address at 1318 Catherine Street, Philadelphia, Pennsylvania 19147 ("RCO").

WHEREAS, Owner is the owner of the real properties located at Broad Street and Washington Avenue, Philadelphia, PA, BRT#88-5-8064-60 and 1223-1225 Washington Avenue, Philadelphia, PA, OPA #885647940 in Philadelphia, PA (the "Properties");

WHEREAS, Owner proposes to relocate lot lines/lot consolidation, and construct two (2) multi-family residential structures totaling 1,486 residential units, including amenities and ground floor retail (the "Project"), all in accordance with the Zoning/Use Registration Permit Application #ZP-2020-007222C and #ZP-2020-2020-007085C Owner filed with the Philadelphia Department of Licenses & Inspections ("L&I"), along with Zoning Site Plans prepared by Bohler Engineering PA, LLC dated September 14, 2020 and September 18, 2020 respectively. (the "Zoning Site Plans").

WHEREAS, the viability of the project is contingent on both the support of the RCO and obtaining the Requested Zoning and Civic Design Review Approvals to develop the Property in accordance with the Zoning Site Plans.

WHEREAS, the RCO, after holding duly noticed public meetings, and upon consideration of all factors, agreed to support and not to oppose Owner's Requested Zoning Approvals including specifically Civic Design Review;

WHEREAS, Owner voluntarily offers and agrees for the betterment of the community and to lessen any minimal impacts of the Project, if any, upon the immediate surrounding area to voluntarily enter into an Agreement concerning the Project and subjects covered in this Agreement.

NOW, THEREFORE, in consideration of the above and the voluntary mutual exchange of consideration of the parties hereto, the Owner and RCO agree as follows:

1. RCOs

- a. The RCO is supporting the granting of, and are not objecting to, the Owner's Requested Zoning Approvals.

2. The Approved Project

- a. The Owner will develop the Properties in substantial accordance with the Applications and Zoning Site Plans referenced above, provided the RCO and Civic Design Review does not object to the Owner's Requested Zoning Approvals.

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3. Community Benefits

a. Community Hiring

i. Construction Jobs; Materials

1. Owner will require its construction sub-contractors to hold a job fair for all community residents to apply for any open positions.
2. Owner will give preference to qualified sub-contractors within the community. (Please note, Owner does not hire individual construction workers, but only sub-contractor companies).
3. Owner will give a preference to locally sourced materials and services to the extent feasible.

ii. Retail Leasing and Jobs

1. Owner will require every future retail lease signed at the Properties contains a requirement that the tenant advertise to the RCO job openings and will encourage tenants to hire local workforce.
2. Of the up to 30,000 square feet of non-grocery retail, Owner will set aside 25% of it to operators from or otherwise based in Philadelphia.
3. Owner will offer technical aid to independent retailers by working with local universities business programs.

iii. Construction Workforce Goals

1. Owner will use commercially reasonable efforts to ensure 20% of the construction workforce resides from within the immediate zip codes containing and adjacent to the Properties.

iv. Property Tax Assistance

1. Owner will retain legal assistance on behalf of the Hawthorne neighbors, as a class, who wish to dispute higher tax assessments. Owner will also ask other developers to join with us in urging the City of Philadelphia to protect residents from higher assessments caused by new development.

v. Arts & Culture

1. Owner will buy local art to the extent possible.
2. Owner will showcase appropriate artwork from both CAPA and University of the Arts students.

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3. Owner will offer ground floor public spaces to local artists to market their works four times per year.
4. Owner will create a high-speed Wi-Fi hotspot at the Hawthorne Recreation Center.
5. Owner will support a part time "town watch" organizer for 5 years.
6. Owner will offer a scholarship to Community College for 2 students from each Palumbo Academy and CAPA, with the scholarship to be decided by the RCO.
7. Owner will support Jazz, Shakespeare and movie nights in Hawthorne Park with a \$7,000 per year donation to the Friends of Hawthorne Park to be used for those programs.
8. Owner will restore the missing brick in the sidewalk along the west side of 13th Street from Christian Street to Carpenter Street.
9. Owner will provide (once per month) landscape and trash clean-up for Hawthorne Park and Ridgeway Park to supplement the parks' standard operations.
10. Owner will provide and install two benches in Ridgeway Park.
11. Owner will provide and install security cameras to cover common areas on the Owner's property, adjacent public sidewalks, and to the extent feasible, extend coverage to park areas north of the Owner's property.

4. **Project Revisions.**

- a. Owner may from time to time revise its approved zoning plans and apply for Zoning/Use Registration Permits for such things as building revisions, adjustments or improvements, as well for uses. This Agreement covers, and RCO does not object, to uses, building revisions, and Permits that are permissible as a matter of right.
- b. For zoning plan revisions and Permits that require ZBA variance or other relief, Owner will timely notify RCO of any such applications it has submitted, and RCO will not object so long as there are no substantive changes that violate the design concessions set forth on **Exhibit A**.
- c. RCO will not unreasonably withhold its support or non-objection to such applications for variance or other relief. A breach by RCO of this subsection does not prevent Owner from pursuing such variance or other relief.

5. **Termination.** If the RCO breaches the provisions of Section 1 or Section 4 then this Agreement shall automatically terminate. In addition, this Agreement shall terminate in the event that Owner fails to obtain the Requested Zoning Approvals.

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6. Authority. The individuals executing this Agreement represent and warrant that they are each authorized to bind the respective parties.
7. Applicable Law, Choice of Forum. This Agreement shall be interpreted under the laws of the Commonwealth of Pennsylvania without regard to choice of law provisions.
8. Counterparts. This Agreement may be executed in counterparts.

[Signatures on following page]

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IN WITNESS WHEREOF, the parties hereto, intending to be legally bound, have executed this Agreement as of this day and year first above written.

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Hawthorne Empowerment Coalition, a _____.

By: Raed Nasser

Name: Raed Nasser

Title: PRESIDENT

Broad and Washington, LP

By: [Signature]

Name: Bart Blatstein

Title:

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Exhibit A

Design Concessions

- Owner has scaled back the height of the buildings as requested by RCO, not to exceed 210 feet at its highest point.
- Owner has eliminated the hotel from the plan.
- The proposed homes on the west side of 13th Street will be in scale with the existing row homes on the east side of 13th Street.
- All of the parking will be enclosed, as requested, as well as the dumpsters.
- Truck traffic has been rerouted so that no trucks making deliveries to the project will drive down 13th Street.
- Owner has redesigned the project to be more welcoming to the community at the pedestrian level by moving retail from the fourth floor down to ground level and adding masonry materials to supplement the glazing.

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Exhibit B

Ordinance

WHEREAS, the Owner, upon consideration of all factors, has shared with Hawthorne Empowerment Coalition, plans to request an Ordinance for 1001 S. Broad Street and 1223 Washington Avenue. This Ordinance will include the Hawthorne Empowerment Coalition approved plans for 1001 S. Broad Street and 1223 Washington Avenue. In addition, it will provide for above ground parking, so long as it is not directly accessible from Broad Street. Hawthorne Empowerment Coalition has agreed to support Owner's Requested Ordinance.

On this 9th day of December, 2020

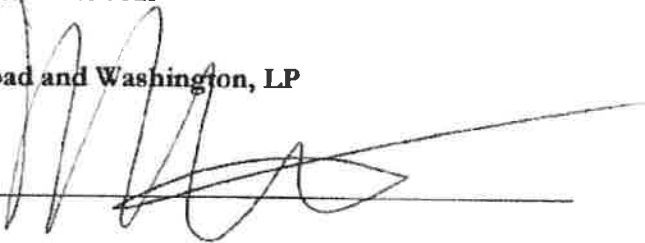
Hawthorne Empowerment Coalition

By: 

Name: Raed Nasser

Title: President

Broad and Washington, LP

By: 

Name: Bart Blatstein

Title: President